

24STCV10601 24STCV10601

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Case Number: 24STCV10601 Hearing Date: September 22, 2026 Dept: 11

Final Approval of Class Action

Settlement

Department SSC-11

Soria

v. Kew Enterprises, Inc.

Case No.: 24STCV10601

Hearing Date: September 22, 2026

TENTATIVE

RULING

The motion for final approval is
granted.

BACKGROUND

This is a wage and hour class action. On

April 26, 2024, Plaintiff filed a Class Action Complaint against Defendants

alleging: (1) Failure to Provide Meal Periods and/or Pay Meal Period Premiums;

(2) Failure to Authorize and Permit Rest Breaks and/or Pay Rest Break Premiums;

(3) Failure to Timely Pay Final Wages; (4) Failure to Provide Complete and

Accurate Wage Statements; (5) Failure to Reimburse Necessary Business Expenses;

and (6) Unfair Business Practices.

On April 22, 2024, Plaintiff gave timely written notice to Defendants and the LWDA, pursuant to Labor Code section 2699.3, subd.(a).

On June 21, 2024, Plaintiff filed a First Amended Class Action and Representative Action Complaint adding a seventh cause of action for civil penalties under the PAGA.

Class Counsel represents that prior to mediation, Plaintiff obtained through informal discovery information and documents, including but not limited to (1) time and pay records, (2) information regarding Defendant's policies and practices, and (3) information relating to number and dates of employment of Class Members and Aggrieved Employees.

On May 13, 2025, the Parties participated in an all-day mediation presided over by Kevin Barnes, Esq., which resulted in settlement pursuant to a mediator's proposal. On September 8, 2025, counsel filed a fully executed Settlement Agreement attached to the Declaration of Hengameh S. Safaei ("Safaei Decl.") ISO Preliminary Approval as Exhibit 1.

Preliminary Approval was granted on March 10, 2026. Notice was given to the Class Members as ordered. (See Declaration of Madely Nava ("Nava Decl.").)

CLASS DEFINITION AND ESSENTIAL MONETARY TERMS OF SETTLEMENT AGREEMENT

"Class Member" means Plaintiff and all other individuals who are or were employed by Defendant in California as non-exempt hourly-paid employees, who worked at least one shift during the Class Period. (§1.5)

"Class Period" means the period from April 26, 2020 to August 4, 2025. (§1.11)

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The Class Data consisted of a total of 1,842 individuals. (Nava Decl., §5.)

“Aggrieved Employee” means Plaintiff and all other individuals who are or were employed by Defendant in California as non-exempt hourly-paid employees, who worked at least one shift during the PAGA Period. (¶1.4)

“PAGA Period” means the period from April 22, 2023 to July 15, 2025. (¶1.31)

There are 884 Aggrieved Employees who worked a total of 29,777 pay periods during the PAGA Period. (Nava Decl., ¶18.)

· Based on its records, as of the date of mediation, Defendant estimated there are 1,798 Class Members who collectively worked a total of 102,908 Workweeks. The Parties agree that if the number of Workweeks exceeds 102,908 by more than thirteen and one-half percent (13.5%), the Gross Settlement Amount will be increased proportionately for each additional workweek above the thirteen and one-half percent (13.5%) threshold. For example, if the number of Workweeks increases by fourteen and one-half (14.5%), the Gross Settlement Amount shall be increased by one percent (1%). (¶9)

o Apex determined that the total number of Workweeks during the Class Period is 127,679, which exceeds the Escalator Clause threshold. (Nava Decl., ¶5.) Application of the Escalator Clause increased the Gross Settlement Amount increased by \$58,034.87, from the original amount of \$549,000 to \$607,034.87. As a result, the Gross Settlement Amount is \$607,034.87. (Ibid.)

· The Gross Settlement Amount (“GSA”) is \$607,034.87, non-reversionary. (¶3.1; Nava, ¶5.)

· The Net Settlement Amount (“Net”) of \$306,439.91 is the GSA minus:

Up to \$202,344.96 (1/3 of GSA) for attorneys' fees (§3.2.2; Nava Decl., ¶16);

Up to \$20,000 for attorneys' costs (Ibid.);

Up to \$7,500 for a Service Payment to the class representative (§3.2.1);

Up to \$15,750 for costs of settlement administration (§3.2.3); and

Payment of \$55,000 PAGA penalty (75% or 41,250 to the LWDA) (§3.2.5).

· Defendant

will separately pay any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (§3.1)

· Funding

of the Settlement: Defendant shall fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator no later than fourteen (14) days after the Effective Date. (§4.2)

· There is no claim form requirement. (§3.1)

· For

any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to Legal Aid At Work, Workers' Rights Clinic ("Cy Pres Recipient") leaving no unpaid residue subject to the requirements of California Code of Civil Procedure Section 384, subd.

(b). The Parties, Class Counsel and Defense Counsel represent that they have no interest or relationship, financial or otherwise, with the intended Cy Pres Recipient. (§4.3.3.)

· Scope

of the Release: As

of the date Defendant fully funds the Settlement and the employer's share of payroll taxes pursuant to the terms of this Agreement, Plaintiff, Class Members, and Aggrieved Employees, and Class Counsel will release claims against all Released Parties as follows: (§6)

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All

Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release the Released Parties from all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the operative First Amended Complaint in the Action, including any and all claims involved any alleged failure to reimburse necessary business expenses; failure to provide meal premiums and/or unpaid meal period premiums; failure to authorize and permit rest breaks and/or unpaid rest break premiums; failure to timely pay final wages; failure to provide complete wage statements; failure to timely pay wages; and based on violations of Labor Code sections 201, 202, 203, 204, 226, 226.3, 226.7, 512, 558, 1174.5, 2800, 2802, applicable sections of the relevant Industrial Welfare Commission Wage Order(s), or Business and Professions Code section 17200, et seq., which are premised on the same allegations, and applicable Cal. Code Regs. The operative release period for the Released Class Claims is the Class Period. Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period.

(¶6.2)

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All

Aggrieved Employees are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from all claims for PAGA civil penalties available under PAGA based on the facts alleged in the operative First Amended Complaint in the Action and Plaintiff's PAGA Notice (the "Released PAGA Claims") during the PAGA Period. (¶6.3)

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Because

future PAGA claims are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are Aggrieved Employees are deemed to release the claims identified in Paragraph 6.3 of this Agreement and are eligible for an Individual PAGA Payment. (¶8.5.4)

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“Released

Parties” means: KEW and each of KEW’s former and present directors, officers, partners, shareholders, owners, members, attorneys, insurers, predecessors, successors, assigns, subsidiaries, affiliates, agents, and parents. (¶1.41)

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Named Plaintiff will additionally provide a general release and §1542 waiver. (¶6.1)

· The proposed Settlement Agreement was submitted to the LWDA on September 8, 2025. (Safaei Decl. ISO Preliminary Approval, ¶16, Ex. 5.)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does a presumption of fairness exist?

The Court preliminarily found in its Order on March 10, 2026 that the presumption of fairness should be applied. No facts have come to the Court’s attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction of the class members to the proposed settlement.

Number of class members: 1,842 (Nava Decl., ¶5.)

Number of notice

packets mailed: 1,842 (Id. at ¶7.)

Number of

undeliverable notices: 59 (Id. at ¶9.)

Number of

opt-outs: 0 (Id. at ¶11.)

Number of

objections: 0 (Id. at ¶12.)

Number of

participating class members: 1,842 (Id. at ¶14.)

Average

individual payment: \$169.54 (Id. at ¶17.)

Highest individual

payment: \$675.08 (Ibid.)

Lowest individual

payment: \$2.45 (Ibid.)

Number

of Aggrieved Employees: 884 (Id. at ¶18.)

Average

PAGA payment: \$15.55 (Id. at ¶19.)

Highest PAGA

payment: \$27.24 (Ibid.)

Lowest PAGA

payment: \$0.46 (Ibid.)

The Response Deadline was August 17, 2026 and the Extended Response Deadline for Class Members who received a remailed notice was August 31, 2026. (Nava Decl., ¶10.) The administrator's initial declaration was dated August 25, 2026. (See Nava Decl., passim.) Ms. Nava provided a further declaration

filed September 11, 2026 testifying that “Apex has not received any Requests for Exclusion, objections, or disputes concerning the number of Workweeks from any Class Member, and all applicable deadlines have passed. Accordingly, Apex reports 1,842 Participating Class Members, representing 100% of the Settlement Class.”

The Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the Class Members and the LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel

request an award of \$202,344.96 (33%) in fees and \$14,143.32 in costs. (Motion ISO Final, 8:5-12.)

The Settlement Agreement provides for fees up to \$202,344.96 (33%) in fees and \$20,000 in costs (Settlement Agreement ¶3.2.2; Nava Decl., ¶16); class members were provided notice of the requested awards and none objected. (Nava Decl., ¶12 and Exhibit A thereto.)

“Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.”

(Wershba v. Apple Computer, Inc. (2001)

91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using the percentage method and via loadstar crosscheck. (Motion ISO Final, pgs. 15-21.)

In common fund cases, the Court may employ a percentage of the benefit method, as cross-checked against the lodestar. (Laffitte v. Robert Half Int’l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents 35% of the gross settlement amount, which is above the average generally awarded in class actions. (See In re Consumer Privacy Cases

(2009) 175 Cal.App.4th 545, 558, fn. 13 ["Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery."].)

Counsel

represents North Law, P.C. expended over 257 hours in connection with this matter at a rate of \$800 per hour, for a total lodestar of \$205,600, which would require a negative multiplier to yield the requested fee amount. (Hengameh S. Safaei, Decl. ISO Final, ¶¶44-45 and Exhibit 5 thereto.)

As

for costs, Class Counsel is requesting \$14,143.32.

(Hengameh S. Safaei, Decl. ISO

Final, ¶48 and Exhibit 6 thereto.) This is less

than the \$20,000 cap provided for in the Settlement Agreement (¶3.2.2); for which Class Members were given notice and deemed

unobjectionable. (Nava Decl. Decl., ¶12

and Exhibit A thereto.)

To date, Class Counsel have incurred a total of \$14,143.32 in

costs in this action. (Hengameh S.

Safaei, Decl. ISO Final, ¶48 and Exhibit 6 thereto.) The costs include, but are not limited to, filing fees, Expert costs (Codicci) (\$4,200), and mediation costs (\$7,500). (Ibid.) The costs

appear to be reasonable in amount and reasonably necessary to this litigation.

Based

on the above, the recommendation is to award \$202,344.96 (33%) in fees and \$14,143.32 in costs.

D.

Incentive

Award

The Settlement provides for up to \$7,500 for a service payment to the Named Plaintiff. (Settlement Agreement, ¶3.2.1.)

Plaintiff Soria represents that his contributions

to this litigation include, but were not limited to spending 40 hours on the

following: obtaining counsel, having numerous conversations with counsel, searching

for and providing documents, preparing for mediation, remaining available

during and participating in mediation, and reviewing the settlement. (Soria Decl., ¶¶3-6, 8-9.)

Based

on the above, as well as the benefits obtained on behalf of the class, the recommendation is to grant an enhancement payment in the amount of \$7,500.

E.

Claims

Administration Costs

The

claims administrator is requesting \$15,750 for the costs of settlement administration. (Nava Decl., ¶20.) This is equal to

the estimated cost of \$15,750 provided for in the Settlement Agreement (¶3.2.3), and disclosed to class members in the Notice, to which there were no objections. (Nava Decl., ¶12 and Exhibit A thereto.)

Based on the above, the recommendation is to award costs in the requested amount of \$15,750.